



Mindteck (India) Limited

(CIN: L30007KA1991PLC039702)

Registered Office: A.M.R. Tech Park, Block I, 3rd Floor, #664, 23/24, Hosur Main Road,
Bommanahalli, Bengaluru - 560 068, India.

Tel.: +91 80 4154 8000 Fax: +91 80 4112 5813

E-mail: shivarama.adiga@mindteck.com Website: www.mindteck.com

POSTAL BALLOT NOTICE

[Pursuant to Section 110 of the Companies Act, 2013 read with Rule 22 of Companies (Management and Administration) Rules, 2014]

**TO,
THE MEMBERS OF MINDTECK (INDIA) LIMITED**

NOTICE IS HEREBY given pursuant to Section 110 of the Companies Act, 2013 read with Rule 22 of Companies (Management and Administration) Rules, 2014 and any amendments thereto to seek Members' approval by way of postal ballot/electronic voting (e-voting) in respect of the Resolution contained as Special Business given hereunder:

Members' consent is requested for the proposal contained in the Resolution appended herein below.

The Explanatory Statement pursuant to Section 102 of the Companies Act, 2013 pertaining to the said Resolution setting out the material facts and the reasons thereof is annexed hereto along with a Postal Ballot Notice (the "Notice") seeking the Members' assent or dissent to the proposed Resolution.

Item No. 1: Approval for the Payment of Remuneration to Mr. Sanjeev Kathpalia as Managing Director and Chief Executive Officer of the Company

To consider and if thought fit, to pass the following Resolution as a **Special Resolution**:

"RESOLVED THAT further to the earlier authorisation accorded by the Members of the Company in their 26th Annual General Meeting held on August 11, 2017 for the appointment and payment of remuneration to Mr. Sanjeev Kathpalia (DIN: 05257060) as a Managing Director and Chief Executive Officer, the Consent of the Members be and is hereby accorded pursuant to Section 197 and other applicable provisions of the Companies Act, 2013, Rules made thereunder, including any statutory modification(s) or re-enactment(s) thereof for the time being in force and SEBI (Listing Obligations & Disclosure Requirements) Regulations, 2015, for the payment of remuneration of Rs.125,00,000/- (Rupees One Hundred Twenty Five Lakhs only) as fixed pay and Rs. 55,00,000/- (Rupees Fifty Five Lakhs only) as Variable Pay, per annum from March 01, 2017, for a period of three (3) years as stipulated in the employment agreement dated March 09, 2017 subject to the approval of Central Government if required, with the authority to the Board to alter and vary the terms and conditions of the said appointee.

RESOLVED FURTHER THAT in the event of loss or inadequacy of profits in any financial year, notwithstanding anything to the contrary herein contained, the appointee shall be paid the above fixed pay as the Minimum Remuneration as agreed between the Board of Directors and the appointee.

RESOLVED FURTHER THAT any Director or the Company Secretary of the Company be and are hereby severally authorized to take such steps, actions and do things, deeds, matters including the filing of necessary forms with Ministry of Corporate Affairs and obtaining necessary approvals from Central Government if required so as to give proper effect to this Resolution."

Registered Office:

A.M.R. Tech Park, Block 1,
3rd Floor, #664, 23/24, Hosur Main Road,
Bommanahalli, Bengaluru - 560 068

January 31, 2018
Bengaluru

**By the Order of the Board of Directors,
for MINDTECK (INDIA) LIMITED**

**Shivarama Adiga S.
Vice-President,
Legal and Company Secretary**

NOTES:

- 1 The explanatory statement and reasons for the proposed Resolution pursuant to Section 102 of the Companies Act, 2013 setting out material facts is annexed hereto.
- 2 The notice of the Postal Ballot will also be placed at the Company's website **www.mindteck.com** which will remain till the last date fixed for receipt of the postal ballots from the Members.
- 3 The Company has appointed Mr. Gopalakrishnaraj H H, Practicing Company Secretary (FCS No. 5654, CP No. 4152), Bengaluru as the Scrutinizer for conducting the Postal Ballot process in a fair and transparent manner.
- 4 The Postal Ballot Form and the self-addressed Business Reply Envelope (postage pre-paid, if posted in India) are enclosed for all the Members, whose names appear in the Register of Members as on February 09, 2018.

- 5 The Members are requested to carefully read the instructions printed in the Postal Ballot Form and return the said Postal Ballot Form duly completed with the assent (for) or dissent (against), in the attached pre-paid envelope, so as to reach the Scrutinizer not later than March 16, 2018 (at 5.00 p.m. IST) to be eligible for being considered, failing which, it will be strictly treated as if no reply has been received from the Member(s).
- 6 Upon completion of the scrutiny of the Forms, the Scrutinizer will submit his report to the Chairman of the Company or the Company Secretary. Subsequently, the result of the Postal Ballot will be announced by the Chairman of the Company or the Company Secretary latest by **March 18, 2018**.
- 7 The results declared, along with the Scrutinizer's Report, shall be placed on the Company's website (**www.mindteck.com**) and on the website of NSDL (**www.evoting.nsdl.com**) after passing of the Resolution and communicated to the Stock Exchanges, where the shares of the Company are listed.
- 8 In compliance with the provisions of Section 108 and 110 of the Companies Act, 2013 read with Rules framed thereunder and Regulation 44 of SEBI (Listing Obligations and Disclosure Requirements) Regulations, 2015, Members are provided with the facility to cast their vote electronically through the e-voting services provided by NSDL on the Resolution set forth in this Notice. The instructions for e-voting are as under:
- A. In case a Member receives an e-mail from NSDL (for Members whose e-mail addresses are registered with the Company/Depositories):
- i. Open the e-mail and also open PDF file named "**MINDTECK e-voting.pdf**" with your Client ID or Folio No. as the password. The said PDF file contains your user ID and password for e-voting. Please note that the password is an initial password.
 - ii. Open the internet browser and type the following **URL: https://www.evoting.nsdl.com/**
 - iii. Click on Shareholder–Login.
 - iv. If you are already registered with NSDL for e-voting, then you can use your existing user ID and password.
 - v. If you are logging in for the first time, please enter the user ID and password provided in the PDF file attached with the e-mail as initial password.
 - vi. The Password Change Menu will appear on your screen. Change to a new password of your choice, making sure that it contains a minimum of 8 digits or characters or a combination of both. Please take the utmost care to keep your password confidential.
 - vii. Once the e-voting home page opens, click on e-voting: Active Voting Cycles.
 - viii. Select "**EVEN**" (E-Voting Event Number) of Mindteck (India) Limited. Now you are ready for e-voting as Cast Vote page opens.
 - ix. Cast your vote by selecting appropriate option and click on "**Submit**" and also "**Confirm**" when prompted.
 - x. Upon confirmation, the message "Vote cast successfully" will be displayed.
 - xi. Once the vote on the Resolution is cast, the Member shall not be allowed to change it subsequently.
 - xii. Institutional shareholders (i.e. other than individuals, HUF, NRI, etc.) are required to send a scanned copy (PDF/JPG format) of the relevant Board Resolution/Authority letter, etc., together with attested specimen signature of the duly authorized signatory(ies) who are authorized to vote, to the Scrutinizer through e-mail to **mindteck.scrutinizer@gmail.com** with a copy marked to **evoting@nsdl.co.in**
 - xiii. In case of any queries, you may refer to Frequently Asked Questions (**FAQs**) -Shareholders and e-voting user manual-Shareholders, available at the downloads section of **www.evoting.nsdl.com** or call on Toll Free Number-1800 222 990.
- B. In case a Member receives a physical copy of the Postal Ballot Notice (for Members whose e-mail addresses are not registered with the Company/Depositories):
- i. Initial password is provided in the enclosed ballot form: **EVEN** (E-Voting Event Number), user ID and password.
 - ii. Please follow all steps from Sl. No. (ii) to Sl. No. (xiii) above, to cast a vote.
- C. **Other Instructions:**
- i. The e-voting period commences on February 15, 2018 (9.00 a.m. IST) and ends on March 16, 2018 (5.00 p.m. IST). During this period, Members of the Company holding shares either in physical form or in dematerialized form, as on February 09, 2018(**Cut-off date**), may cast their vote electronically. The e-voting module shall be disabled by NSDL for voting thereafter.
 - ii. The voting rights of Members shall be in proportion to their shares of the paid- up equity share capital of the Company as on February 09, 2018(**Cut-off date**).
 - iii. Mr. Gopalakrishnaraj H H., Practicing Company Secretary (FCS No. 5654, CP No. 4152), has been appointed as the Scrutinizer to scrutinize the e-voting process (including the Ballot Form received from the Members, who do not have access to the e-voting process) in a fair and transparent manner.
 - iv. Members who do not have access to the e-voting facility may send a duly completed Ballot Form (enclosed with the Postal Ballot Notice) so as to reach the Scrutinizer, Mindteck (India) Limited, C/o Universal Capital Securities Private Limited, 21, Shakil Niwas, Opp. to Satya Saibaba Temple, Mahakali Caves Road, Andheri (East), Mumbai 400093 not later than March 16, 2018 (5.00 p.m. IST).
 - vii. Members have the option to request a physical copy of the Ballot Form from the Company at its Registered Office or by sending an e-mail to **investors@mindteck.com** or **shivarama.adiga@mindteck.com** by mentioning their Folio/DP ID and Client ID or download the same from the Company's website (**www.mindteck.com**). However, the duly completed Ballot Form should reach the Scrutinizer not later than March 16, 2018 (5.00 p.m. IST).
 - viii. Any Ballot Form received after this date shall be treated as invalid.
 - ix. A Member may opt for only one mode of voting – either through e-voting or by Ballot. If a Member casts votes by both modes, then voting done through e-voting shall prevail and Ballot shall be treated as invalid.

EXPLANATORY STATEMENT FOR THE PROPOSED RESOLUTION PURSUANT TO SECTION 102 READ WITH SECTION 110 OF THE COMPANIES ACT, 2013

Item No 1:

Approval for the Payment of Remuneration to Mr. Sanjeev Kathpalia as Managing Director and Chief Executive Officer of the Company

The Company in its 26th Annual General Meeting held on August 11, 2017 got the approval from Members of the Company for the Appointment and Payment of Remuneration to Mr. Sanjeev Kathpalia as Managing Director and Chief Executive Officer. Subsequently, after the approval from Members, the documents were submitted to Central Government for their approval. Due to the requirement of some additional information, the application submitted to Central Government was rejected.

Hence, for fulfilling the requirement of Central Government, the Company intends to pass the Resolution through Postal Ballot and submit the application to Central Government once again, if required.

The material terms of the Agreement dated March 09, 2017 entered into between the Company and Mr. Sanjeev Kathpalia are set out herein below:

- A. Term of appointment: From March 01, 2017 to February 29, 2020.
- B. Compensation: The annual Remuneration of the Managing Director and Chief Executive Officer, Mr. Sanjeev Kathpalia shall be Rs 1,80,00,000/- (Rupees One Crore Eighty Lakhs only) as under:
- Fixed Pay: Rs 1,25,00,000/- (Rupees One Crore Twenty Five Lakhs only)
 Variable Pay: Rs 55,00,000/- (Rupees Fifty Five Lakhs only)
 Stock Options: 5,00,000 (Five Lakhs Only)
 Saving and retirement plans: As per the existing policy of the Company
 Insurance: Group Medical and Group Accident Policies.
 Other Benefits: Leave as per existing Company policy.
- C. The period of notice of termination: 90 Days.
- D. He is entrusted with substantial powers of management of the operations, performance and all other areas of Mindteck and all its subsidiaries, subject to the superintendence, control and direction of the Board.

In the event of any loss or inadequacy of profit in any of the financial year during the tenure of Mr. Sanjeev Kathpalia as Managing Director and Chief Executive Officer, the fixed pay as set out in the aforesaid Agreement would be paid to him as minimum remuneration.

The Board including the committee thereof is authorised to alter or amend the terms of appointment and the benefits within the overall remuneration as approved supra.

The Board considers that the remuneration proposed to be paid to Mr. Sanjeev Kathpalia is commensurate with his duties and responsibilities as a Managing Director and Chief Executive Officer. Therefore it is recommended to consider the resolution set out at Item No.1 of the Notice for your approval.

The statement as per item (iv) of third proviso of Section II of part II of Schedule V to the Companies Act, 2013 along with information required as per Secretarial Standards- 2 and Regulation 36(3) of the Securities Exchange Board of India (Listing Obligations and Disclosure Requirements) Regulations, 2015 for the payment of remuneration to Mr. Sanjeev Kathpalia as Managing Director and Chief Executive Officer is set out below:

STATEMENT AS PER ITEM (IV) OF THE THIRD PROVISOR OF SECTION II OF PART II OF SCHEDULE V TO THE COMPANIES ACT, 2013.

I. General Information

1. Nature of industry	Information Technology			
2. Date or expected date of commencement of commercial production	Not Applicable			
3. In case of new companies, expected date of commencement of activities as per project approved by financial institutions appearing in the prospectus	Not Applicable			
4. Financial performance based on given indicators	Amount in Rs.			
	Details	2014-15	2015-16	2016-17
	Paid Up Capital	250,629,710	251,731,010	253,838,950
	Reserves & Surplus	1,413,817,795	1,468,355,369	1,528,421,281
	Turnover	801,699,232	866,462,106	836,381,611
	Profit/(Loss) Before Tax	178,027,344	135,207,019	81,705,375
	Profit/(Loss) After Tax	114,812,825	82,015,997	54,334,201
5. Foreign Investment or Collaboration, if any	Embatech Holdings Limited, Mauritius is the Promoter of the Company. The Company has not invested in any foreign investment or collaboration other than in its Subsidiaries.			

II. Information about the appointee

1. Background details	Mr. Sanjeev Kathpalia is a seasoned strategist with over 35 years of global experience spanning executive roles in investment banking, manufacturing and business development. Most recently, Mr. Kathpalia served as a Senior Advisor for the Republic of Turkey – Prime Ministry, Investment Support and Promotion Agency of Turkey. Prior to this, Mr. Kathpalia was the Chairman of PDF Corporate Finance (a subsidiary of TAIB YatirimBank), a leading Istanbul-based M&A boutique focused on mid-market opportunities. He was also the CEO at TAIB YatirimBank, the first foreign owned investment bank in Turkey. Previous industry experience includes leading the supply chain and R&D divisions of an industrial manufacturing company (part of ETEX Group of Belgium), as well as supply-side management of consumer goods giant Hindustan Unilever Ltd./Unilever Group. Mr. Kathpalia holds an MBA from IIM Calcutta, and a Bachelor of Technology in Chemical Engineering from IIT Delhi.
2. Past 3 (Three) Financial years remuneration	USD 255,000 p.a. plus reimbursement of expenses of USD 24,000 p.a.
3. Recognition or awards	Accompanied the President of Turkey on his state visits to India, Bangladesh and other Asian countries. Hosted the Prime Minister of Turkey on his first overseas visit for a business meeting Hosted the largest conference of M&A Investment Bankers from 45 countries in Turkey.
4. Job profile and his suitability	Mr. Sanjeev Kathpalia shall be responsible for performing any and all of the duties that are customary to the position of MD & CEO, and shall report to the Board of Directors of the Company. Such duties shall include full power and authority for the overall management and direction of the business of the Company and its subsidiaries, subject only to the provisions of law and overall direction by the Board of Directors, and including such other duties as may, from time to time, be assigned to Mr. Sanjeev Kathpalia by the Board of Directors of the Company. As MD & CEO his responsibilities shall include, but shall not be limited to, (i) developing and implementing corporate strategy and overall corporate development of the Company and all its subsidiaries abroad (ii) achieving the financial budgets, targets and other financial or client related objectives as may be set by the Board of Directors, (iii) maintaining and cultivating clients/institutional relationships and providing input on alliances, partnerships and acquisitions for the Company on a global scale (iv) Integrating and motivating the management team and strengthening the internal processes and operations of the Company and its subsidiaries (v) maintaining relations with the shareholders (and all other stakeholders) and making every effort towards building profitable business lines and client relationships.
5. Remuneration proposed	Rs. 180 lakhs (Rs. 125 Lakhs as fixed pay & Rs. 55 Lakhs as variable pay)
6. Comparative remuneration profile with respect to industry, size of the company, profile of the position and person (in case of expatriates the relevant details would be w.r.t. the country of his origin)	Well within industry norms
7. Pecuniary relationship directly or indirectly with the Company, or relationship with the managerial personnel, if any.	NIL

III. Other information:

1. Reasons of loss or inadequate profits	There is no loss but the standalone profit is inadequate to meet the percentage criteria stipulated in the Companies Act, 2013. However, Company has sufficient profits as per Consolidated Financial Statement.
2. Steps taken or proposed to be taken for improvement:	IT Industry is subjected to many external constraints and effective measures are being taken to reduce the establishment cost and improve the profitability.
3. Expected increase in productivity and profits in measurable terms	The Company hopes to increase the revenue and profits by improved margins in current and future years.

IV. Disclosures: The following disclosures which shall also be mentioned in the Board of Directors Report under the heading 'Corporate Governance' in the Annual Report of FY 2017-18, as under:

- (1) All elements of remuneration package such as salary, benefits, bonuses, stock options, pension, etc., of all the Directors for the FY 2016-17;

A. Remuneration to Managing Director, Whole-time Directors and/or Manager:

Sl.No.	Particulars of Remuneration	Name of MD/WT/Manager			Total Amount
	Name	Yusuf Lanewala	Sanjeev Kathpalia	Meenaz Dhanani	(Rs)
	Designation	Chairman and Managing Director	Managing Director and Chief Executive Officer *	Executive Director**	
1	Gross salary				
	(a) Salary as per provisions contained in section 17(1) of the Income-tax Act, 1961	6,999,996	987,535	-	7,987,531
	(b) Value of perquisites u/s 17(2) Income-tax Act, 1961	-	-	-	-
2	(c) Profits in lieu of salary under section 17(3) Income- tax Act, 1961	-	-	-	-
	Stock Option	225,000 options	250,000 options	100,000 options	575,000 options
3	Sweat Equity	-		-	-
4	Commission -as % of profit -others, specify	-	-	-	-
5	Others, please specify	-	-	-	-
	Total (A)	6,999,996	987,535	-	7,987,531
	Ceiling as per the Act	4,580,484	4,580,484	4,580,484	9,160,968

*Appointed as Managing Director and Chief Executive Officer w.e.f. March 01, 2017

**Remuneration to Meenaz Dhanani is paid by wholly-owned subsidiary Mindteck, Inc. USA

B. Remuneration to other Directors:

Sl.No.	Particulars of Remuneration	Name of Directors					Total Amount
		Javed Gaya	Narayan Menon	Jagdish Malkani	Prochie Mukherji	Guhan Subramaniam*	(Rs)
1	Independent Directors						
	Fee for attending board committee meetings	315,000	315,000	240,000	225,000	275,000	1,370,000
	Commission**	360,000	360,000	360,000	360,000	-	1,440,000
	Others, please specify	-	-	-	-		-
	Total (1)	675,000	675,000	600,000	585,000	275,000	2,810,000
2	Other Non-Executive Directors						
	Fee for attending board committee meetings	-	-	-	-	-	-
	Commission	-	-	-	-	-	-
	Others, please specify	-	-	-	-	-	-
	Total (2)	-	-	-	-	-	-
	Total (B)=(1+2)	675,000	675,000	600,000	585,000	275,000	2,810,000
	Total Managerial Remuneration	-	-	-	-	-	12,028,362
	Overall Ceiling as per the Act	-	-	-	-	-	10,077,065

*Appointed as an Independent Director w.e.f. May 20, 2016

**Commission paid during the year pertaining to FY 2015-16

- (2) Details of fixed component and performance linked incentives along with the performance Criteria;

Fixed Pay: Rs 1,25,00,000/- (Rupees One Crore Twenty-Five Lakhs only)

Variable Pay: Rs 55,00,000/- (Rupees Fifty-Five Lakhs only)

Stock Options: 5,00,000 (Five Lakhs Only)

The criteria for making payment to Managing Director and Chief Executive Officer is as per Nomination and Remuneration Policy adopted by the Company which is displayed on the website of the Company.

- (3) Service contracts and notice period: The Company has executed formal service contract with Mr. Sanjeev Kathpalia, Managing Director and Chief Executive Officer with a Notice Period of 90 days.
- (4) Stock option details, if any, and whether the same has been issued at a discount as well as the period over which accrued and over which exercisable:

Mr. Sanjeev Kathpalia was granted 250,000 options at Rs. 78.10/- on March 30, 2017 under Mindteck Employee Stock Options Scheme 2014. Further, he was also granted 250,000 options at Rs. 84.45/- on April 06, 2017 under Mindteck Employee Stock Options Scheme 2014. Both stock options mentioned above shall vest @ 1/3rd on the completion of every year from the date of grant. The said stock options can be exercisable within the maximum period of 60 months from the date of vesting.

INFORMATION PURSUANT TO REGULATION 36(3) OF SEBI (LISTING OBLIGATIONS AND DISCLOSURE REQUIREMENTS) REGULATIONS, 2015 REGARDING APPOINTMENT AND RE-APPOINTMENT OF DIRECTOR

Name of the Director	Mr. Sanjeev Kathpalia
Date of Appointment/ Last Re-appointment	February 10, 2017
Brief Resume and nature of expertise in specific functional areas	Mr. Sanjeev Kathpalia is a seasoned strategist with over 35 years of global experience spanning executive roles in investment banking, manufacturing and business development. Most recently, Mr. Kathpalia served as a Senior Advisor for the Republic of Turkey – Prime Ministry, Investment Support and Promotion Agency of Turkey. Prior to this, Mr. Kathpalia was the Chairman of PDF Corporate Finance (a subsidiary of TAIB YatirimBank), a leading Istanbul-based M&A boutique focused on mid-market opportunities. He was also the CEO at TAIB YatirimBank, the first foreign owned investment bank in Turkey. Previous industry experience includes leading the supply chain and R&D divisions of an industrial manufacturing company (part of ETEX Group of Belgium), as well as supply-side management of consumer goods giant Hindustan Unilever Ltd./Unilever Group. Mr. Kathpalia holds an MBA from IIM Calcutta, and a Bachelor of Technology in Chemical Engineering from IIT Delhi.
List of other Listed Companies in which Directorship is held	NIL
Chairman/Member of the Committee(s) of Board of Directors of other Listed Companies in which he is a Director	NIL
Shareholding/ Stock Options in the Company	500,000 Stock Options
Relationship with other Directors/KMP of the Company	NIL
Shareholding of Non-Executive Directors	Mr. Yusuf Lanewala, Non-Executive Chairman holds 32,264 Equity Shares of the Company

INFORMATION AS PER SECRETARIAL STANDARDS

Name	Mr. Sanjeev Kathpalia
Age	65 years
Qualifications	Mr. Kathpalia holds an MBA from IIM Calcutta, and a Bachelor of Technology in Chemical Engineering from IIT Delhi.
Experience	Mr. Sanjeev Kathpalia is a seasoned strategist with over 35 years of global experience spanning executive roles in investment banking, manufacturing and business development.

Terms and conditions of appointment along with details of remuneration sought to be paid	The material terms of the Agreement dated March 09, 2017 entered into between the Company and Mr. Sanjeev Kathpalia are set out herein below: A. Term of appointment: From March 01, 2017 to February 29, 2020. B. Compensation: The annual Remuneration of the Managing Director and Chief Executive Officer, Mr. Sanjeev Kathpalia shall be Rs 1,80,00,000/- (Rupees One Crore Eighty Lakhs only) as under: Fixed Pay: Rs 1,25,00,000/- (Rupees One Crore Twenty-Five Lakhs only) Variable Pay: Rs 55,00,000/- (Rupees Fifty-Five Lakhs only) Stock Options: 5,00,000 (Five Lakhs Only) Saving and retirement plans: As per the existing policy of the Company Insurance: Group Medical and Group Accident Policies. Other Benefits: Leave as per existing Company policy. C. The period of notice of termination: 90 Days. D. The intention of the Company for the appointment of Mr. Sanjeev Kathpalia is to manage and control the Company's business and operations with the aim of securing significant, sustained increase in the value of the Company for its shareholders. He is entrusted with substantial powers of management of the operations, performance and all other areas of Mindteck and all its subsidiaries, subject to the superintendence, control and direction of the Board.
Remuneration last drawn	USD 255,000 p.a. plus reimbursement of expenses of USD 24,000 p.a.
Date of first appointment on the Board	Mr. Kathpalia was appointed as an Additional Director of the Company on February 10, 2017 and Managing Director and Chief Executive Officer effective from March 01, 2017
Shareholding in the company	NIL
Relationship with other Directors, Manager and other Key Managerial Personnel of the Company	NIL
The number of Meetings of the Board attended during the FY 2017-18	Three (3) meetings attended
Other Directorships, Membership/ Chairmanship of Committees of other Boards	He is a Director in Wellcorp Health Services Private Limited & Primex Healthcare and Research Private Limited and has no membership in any Committees of other Boards.

None of the Directors or Key Managerial Personnel (KMP) or relatives of Directors and KMPs is concerned or interested in the Special Resolution set out at item no. 1 of the accompanying notice.

All documents pertaining to the payment of remuneration will be available for inspection at the Registered Office of the Company on any working day during the Company's business hours between 10.00 a.m. to 12 noon.

**By the Order of the Board of Directors,
for MINDTECK (INDIA) LIMITED**

Registered Office:
A.M.R. Tech Park, Block 1,
3rd Floor, #664, 23/24, Hosur Main Road,
Bommanahalli, Bengaluru - 560 068

**Shivarama Adiga S.
Vice-President,
Legal and Company Secretary**

January 31, 2018
Bengaluru

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Mindteck (India) Limited

(CIN: L30007KA1991PLC039702)
Registered Office: A.M.R. Tech Park, Block I, 3rd Floor, #664, 23/24, Hosur Main Road,
Bommanahali, Bangalore - 560 068, India.
Tel.: +91 80 4154 8000 Fax: +91 80 4112 5813
E-mail: shivarama.adiga@mindteck.com Website: www.mindteck.com

POSTAL BALLOT FORM

(To be returned to the Scrutinizer appointed by the Applicant Company)
Serial No.

Name & Registered Address of the :
Sole/first named Shareholder:

Name(s) of the Joint holder(s) if any :
(In Block Letters)

Registered folio no / :
*DP ID No. & Client ID No.
(*Applicable to Shareholders holding
shares in dematerialized form)

Number of shares held :

I / We, hereby exercise my/our vote in respect of the **Special Resolution** to be passed through postal ballot for the businesses stated in the Postal Ballot Notice by sending my/our assent (for) or dissent (against) the said Special resolution by placing (✓) (tick mark) at the appropriate box below:

Item No.	PARTICULARS	No. of Shares	I / We dissent to the resolution (Against)	I / We assent to the resolution (For)
1	Special Resolution Approval for the Payment of Remuneration to Mr. Sanjeev Kathpalia as Managing Director and Chief Executive Officer of the Company			

Place: _____
Date: _____ Signature of the Shareholder(s) / Authorized Representative

Electronic Voting Particulars

The e-voting facility is available at the link <https://www.evoting.nsdl.com>. The electronic voting particulars are set out as follows:

EVEN (E-voting Event Number)	User ID	Password

The e-voting facility will be available during the following voting period:

Commencement of e-voting	End of e-voting
February 15, 2018 at 9.00 A.M. IST	March 16, 2018 at 5.00 P.M. IST

NOTE:
(i) PLEASE SEND YOUR POSTAL BALLOT FORM IN THE ENVELOPE ENCLOSED HERewith
(ii) PLEASE READ CAREFULLY THE INSTRUCTIONS BEFORE EXERCISING THE VOTE.
(iii) DETAILED INSTRUCTIONS FOR E-VOTING ARE FURNISHED IN THE POSTAL BALLOT NOTICE.

INSTRUCTIONS:

1. Pursuant to the provisions of Section 102 of the Companies Act, 2013 read with the Rules made there, the assent or dissent of the Members in respect of the Special Resolution contained in the Postal Ballot Notice dated **January 31, 2018** is being determined through postal ballot.
2. This form should be completed and signed by the Member/Authorized Representative. In case of joint holding, this form should be completed and signed (as per the specimen signature registered with the Company/Depository) by the first-named Member and in his/her absence, by the next-named Member. (However where the Form is sent separately by the first named Shareholder and the Joint holder's the vote of the first named Shareholder would be valid.)
3. The votes of a Member will be considered invalid on any of the following grounds:
 - i. if the Member's signature does not tally;
 - ii. if the Member has marked his/her/its vote both for 'Assent' and for 'Dissent' to the 'Resolution' in such a manner that the aggregate shares voted for 'Assent' and 'Dissent' exceeds the total number of shares held;
 - iii. if the Postal Ballot Form is unsigned, incomplete or incorrectly filled;
 - iv. if the Postal Ballot Form is received torn or defaced or mutilated such that it is difficult for the Scrutinizer to identify either the Member, or the number of votes, or as to whether the votes are for 'Assent' or 'Dissent', or if the signature could not be verified or one or more of the above grounds.
4. The Board of Directors have appointed Mr. Gopalakrishnaraj H H, Practicing Company Secretary (FCS No:5654, CP No.: 4152), Bengaluru as the Scrutinizer for conducting the postal ballot process.
5. The Board of Directors have appointed Mr. Shivarama Adiga S., Vice-President, Legal and Company Secretary of the Company as the person responsible for the entire process of postal ballot.
6. Voting rights shall be reckoned in proportion to the number of shares registered in the name of the shareholders as on **February 09, 2018 (Cut-off date)**.
7. Shareholders desiring to exercise voting right by Postal Ballot may complete the Postal Ballot Form and send it to the Scrutinizer in the attached self-addressed pre-paid envelope. Postage will be borne and paid by the Company. However, envelope containing Postal Ballot Forms if sent by courier, at the expense of shareholder, will also be accepted.
8. A Member may request for a duplicate Postal Ballot Form from the Company at its Registered Office or by sending an e-mail to investors@mindteck.com or shivarama.adiga@mindteck.com by mentioning their Folio/DP ID and Client ID No. if so required or download the same from the Company's website (www.mindteck.com). Any request for issue of duplicate ballot form shall not be entertained after **March 09, 2018**.
9. Members are requested not to send any other matter along with the Postal Ballot Form in the enclosed pre-paid postage self-addressed envelope. If any extraneous papers are found the same will be destroyed by the scrutinizer. The Scrutinizer's decision on the validity of a Postal Ballot shall be final.
10. Corporate / Institutional members (i.e. other than Individuals, HUF, NRI, etc.) are also required to send certified true copy of the Board Resolution/Power of Attorney/Authority Letter, etc., together with attested specimen signature(s) of the duly authorized representative(s) (necessary documents) to the Scrutinizer along with completed and signed Postal Ballot Form.
11. The duly completed Postal Ballot Form should reach the scrutinizer at Universal Capital Securities Private Limited, 21/25, Shakil Niwas, Opp. Satya Saibaba Temple, Mahakali Caves Road, Andheri (East), Mumbai 400093 not later than the date specified herein i.e., on or before **March 16, 2018 (at 5.00 P.M. IST)**. The postal ballots received after this date shall **NOT** be valid.
12. The Scrutinizer will submit his final report as soon as possible after the last date of receipt for postal ballot.
13. The Chairman or the Company Secretary will announce the result of the postal ballot at the Registered Office of the Company at A.M. R. Tech Park, Block 1, 3rd Floor, #664, 23/24, Hosur Main Road, Bommanahalli, Bengaluru - 560 068 **latest by March 18, 2018**. The date of declaration of postal ballot result will be taken to be the date of passing of the Special Resolution.
14. The results of the postal ballot will thereafter be informed to the Stock Exchanges within 48 hours from the conclusion of e-voting period. The results also will be placed at the Company's website: www.mindteck.com.
15. The exercise of vote by Postal Ballot is not permitted through proxy.
16. There will be only one Postal Ballot Form for every Folio/Client ID irrespective of the number of Joint Member(s).
17. Incomplete, unsigned or incorrectly filled Postal Ballot Forms are subject to rejection by the Scrutinizer. Improper, incomplete or incorrectly tick marked Postal ballot Forms will also be rejected
18. The relevant document in respect of the Special Resolution is open for inspection at the Registered Office of the Company on all working days except on Saturdays and Sundays between 10.00 A.M and 12.00 NOON.
19. Any query in relation to the Resolution proposed to be passed through Postal ballot may be addressed to - *Mr. Shivarama Adiga S., Vice-President, Legal and Company Secretary, Mindteck (India) Limited, A.M.R. Tech Park, Block 1, 3rd Floor, #664, 23/24, Hosur Main Road, Bommanahalli, Bengaluru 560 068, Ph:+91-80-4154-8000, Email ID: shivarama.adiga@mindteck.com*